

NON-DISCLOSURE AGREEMENT

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This Non-Disclosure Agreement is entered into as of January 1 2025 by and between Acme Corp a Delaware corporation Disclosing Party and TechStartup Pvt Ltd an Indian private limited company Receiving Party.

1. DEFINITION OF CONFIDENTIAL INFORMATION

Confidential Information means any data or information that is proprietary to the Disclosing Party and not generally known to the public whether in tangible or intangible form whenever and however disclosed including but not limited to technical data trade secrets know-how research product plans products services customers markets software source code developments inventions processes formulas technology designs drawings engineering financial data and business forecasts.

2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to hold the Confidential Information in strict confidence not to disclose the Confidential Information to any third parties without prior written consent and use the Confidential Information solely for evaluation purposes.

3. TERM

This Agreement shall remain in effect for a period of five years from the date of execution. The obligations of confidentiality shall survive termination of this Agreement indefinitely.

4. PENALTIES AND LIQUIDATED DAMAGES

In the event of breach the Receiving Party shall pay liquidated damages of USD 500000 Five Hundred Thousand US Dollars per incident of unauthorized disclosure which the parties agree is a reasonable estimate of the harm caused by such breach.

5. GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware United States without regard to its conflict of law provisions. Any disputes shall be resolved exclusively in the courts of Delaware USA.

6. AUTO-RENEWAL

This Agreement shall automatically renew for successive one-year periods unless either party provides written notice of termination at least 90 days prior to the end of the then-current term.

7. INTELLECTUAL PROPERTY

Any work product inventions or developments created by the Receiving Party using or derived from the Confidential Information shall be the sole and exclusive property of the Disclosing Party.

8. NON-COMPETE

During the term of this Agreement and for a period of three years thereafter the Receiving Party shall not directly or indirectly engage in any business that competes with the Disclosing Party anywhere in the world.

IN WITNESS WHEREOF the parties have executed this Agreement as of the date first written above.